

9.	2023-1345082 Garcia vs. FCA US LLC	Motions withdrawn.
10.	2023-1366212 Guadarrama vs. Tegge	Defendant Uber Technologies, Inc.’s motion to compel plaintiffs Anaely Guadarrama and Lam Nguyen to arbitrate their claims in this action against Defendant Uber is granted as to Plaintiff Guadarrama and as to the gateway issue of interpretation/arbitrability as to Plaintiff Nguyen. The court will stay the action as to the remaining defendants pending completion of arbitration. Arbitration Code Civ. Proc. § 1281.2 provides, <i>inter alia</i>: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, <u>the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists</u>, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement. (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ...” (Emphasis supplied.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the